

		arguments against section 2030.230 lack merit and no further responses are warranted. In light of all the above, the Motion to Compel Further Responses to Form Interrogatories is GRANTED as to No. 9.1 and DENIED as to all other disputed interrogatories. Plaintiff shall serve a further response within 15 days. No sanctions. <i>Moving party to give notice.</i>
10 2	Rask vs. County of Orange, 25-01495933	<i>Off-calendar.</i>
10 3	Mendes vs. Morrison, 25-01504828	Cross-Defendants Ace Professional Property Management Inc., James J. Liberio, and Liberio Realty Inc., dba Ace Professional Property Management ("Cross-Defendants") demur to the (1) first cause of action for breach of contract, (2) second cause of action for negligence, (3) third cause of action for breach of fiduciary duty, (4) fourth cause of action for implied indemnity, (5) fifth cause of action for comparative indemnity, (6) sixth cause of action for equitable indemnity, (7) seventh cause of action for contribution, and (8) eighth cause of action for declaratory relief as alleged in the Cross-Complaint by Lyle Morrison in his individual capacity and as trustee of The Morrison Living Trust, Dated May 24, 2023. The Cross-Complaint at issue is ROA 13. Cross-Complainant Lyle Morrison in his individual capacity and as trustee of The Morrison Living Trust, Dated May 24, 2023 opposes the demurrer. The Demurer presents three arguments: (1) the indemnity clause in the Management Agreement attached as Exhibit A to the declaration in support of the Demurrer bars Cross-Complainant's claims, (2) the negligence cause of action is barred by the economic loss rule, and (3) the fiduciary duty cause of action is barred because the parties were no in a fiduciary relationship. <i>1. Indemnity Clause</i> Much of Cross-Defendants' demurrer rests upon (1) the Court considering the contract attached as an exhibit to the declaration filed in support of the demurrer and (2) the Court interpreting that contract and the impact of that interpretation on the facts alleged in the Complaint. First, Cross-Defendants have provided no legal authority establishing that the Court is permitted to consider and interpret the contract attached as an exhibit to the